

are now self-represented. Should this motion be filed in the future, counsel is reminded that these parties will need to be served.

HAM, ET AL. VS. FCA US, LLC, ET AL.

CASE NUMBER: 24CV-0206529

*Today's calendar is being heard by a visiting judge who has recused on this matter. Per the Order of Recusal dated August 14, 2026, today's hearing was reset to **Monday, August 24, 2026 at 8:30 a.m. in Department 63.***

HUFFMAN VS. HOLIDAY MARKET SAV MOR FOODS NORTH STATE GROCERY INC., ET AL.

CASE NUMBER: 25CV-0208866

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on July 1, 2026 to Plaintiff Linda Huffman and counsel Law Offices of Sharona Eslamboly Hakim for failure to timely serve Defendants as required by CRC 3.110(b). Plaintiff has since filed a Proof of Service of Summons for each of the named Defendants. The Order to Show Cause is **DISCHARGED**. Defendant North State Grocery, Inc. has filed an Answer. The Court notes that the date of personal service for Defendant Victor & Evye Szanto Trust is July 2, 2026, therefore, the time for filing a responsive pleading has lapsed. Plaintiff has not sought entry of default as required by CRC 3.110(g). The matter will be on calendar on **Monday, September 21, 2026 at 9:00 a.m. in Department 63** for status of default or responsive pleading and, if appropriate, trial setting. The Court expects Plaintiff to take the necessary steps to get the matter at issue prior to the next hearing. Plaintiff is to give Notice of this hearing to all parties and file said Notice with the Court no later than 5 Court days prior to said hearing.

KNOX VS. MOHAMUD, ET AL.

CASE NUMBER: 23CV-0202275

Tentative Ruling on Motions to Compel Discovery: Defendant Habib Bashir Mohamud filed a Motion to Compel Plaintiff's Responses to Defendants' Request for Supplemental Interrogatories, Set One, and Request for Supplemental Demand for Production, Set One. Plaintiff did not oppose the motion. The Court notes the trial in this matter has been continued several times. At the hearing on July 23, 2026, the Court granted Defendants' request to hear discovery motions after the cut-off date, pursuant to CCP § 2024.05.

Merits. A party has thirty days after service to respond to a Request for Production, Request for Admissions, Form Interrogatories, or Special Interrogatories. CCP §§ 2031.260(a), 2033.250(a), and 2030.260(a). Not providing a timely response to propounded discovery results in a waiver of objections. CCP §§ 2031.300(a), 2033.280(a), and 2030.290(a). If a party to whom a discovery request is directed fails to serve a timely response, the party propounding discovery may move for an order compelling a response. CCP §§ 2031.300(b) and 2030.290(c). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Defendant has provided evidence that discovery was propounded and that Plaintiff did not provide verified responses within the required timeframe.

Sanctions. Monetary sanctions are sought in the amount of \$2,310 in each motion. This is comprised of five hours of attorney time on each motion at the rate of \$450 per hour plus a filing fee of \$60. No evidence was provided to support the hourly rate requested, which is higher than average for Shasta County. The Court finds \$300 to be a reasonable hourly rate. No breakdown was provided for the five hours requested on each motion. Given the lack of Opposition, the Court will award 3.5 hours on the Supplemental Interrogatories motion, and 2.5 hours on the Supplemental Demand for Production motion. This reflects a reduction of 1.5 hours for not needing to review an Opposition and prepare a substantive Reply and an additional one hour reduction for attending the hearing on the Supplemental Demand for Production motion because the motions will be heard at the same time. This amounts to \$1,110 on the Supplemental Interrogatories motion and \$810 on the Supplemental Demand for

Production motion.

Both motions are **GRANTED**. Plaintiff is ordered to provide verified, objection free responses within fifteen days of Notice of Entry of Order. Monetary sanctions are imposed in the amounts of \$1,110 and \$810 as noted above. Defendant provided proposed Orders that will be modified to reflect the Court's ruling.

KUHN, ET AL. VS. DIGNITY HEALTH, ET AL.

CASE NUMBER: 23CV-0203118

Today's calendar is being heard by a visiting judge who recused on this matter. The matter is continued to **Monday, August 24, 2026 at 8:30 a.m. in Department 63** for hearing on the Applications to Appear Pro Hac Vice. **No appearance is necessary on today's calendar.**

MARTIN VS. CALIFORNIA DEPARTMENT OF TRANSPORTATION

CASE NUMBER: 25CV-0209390

Tentative Ruling on Demurrer: Defendant California Department of Transportation demurs to the Complaint filed by Plaintiff Jonathan Martin on December 8, 2025. A proof of service is attached to each document filed in support of the Demurrer, however, the documents referenced in each proof of service do not correspond with the document filed in this case. Each proof service lists a demurrer by Defendant Joe Norman and Defendant Paul Cruz and a First Amended Complaint. Neither of those individuals are named in this matter and there is no First Amended Complaint on file. With no response from Plaintiff and no proof of service showing that the Demurrer in this matter was served on Plaintiff, the Court must **OVERRULE** the Demurrer. The Court notes that Defendant did not provide a proposed Order as required by Local Rule of Court 5.17(D). Defendant is to prepare the Order hereon.

PEOPLE OF THE STATE OF CALIFORNIA VS. CHADWICK

CASE NUMBER: 26CV-0210291

Tentative Ruling on Motion to Set Aside Summary Judgment Discharge Forfeiture and Exonerate Bail: Defendant Financial Casualty & Surety, Inc. moves to set aside summary judgment, discharge forfeiture, and exonerate bail. No opposition has been filed. Proof of service on the County is by mail only. The Court requires proof of personal service on the County in order for the motion to proceed. The motion is **DENIED** without prejudice. No proposed order was lodged as required by Local Rule 5.17(D). Moving party shall prepare the order.

WARD, ET AL. VS. LEVINDOFSKE, ET AL.

CASE NUMBER: 25CV-0207586

*Today's calendar is being heard by a visiting judge who has recused on this matter. Per the Order of Recusal dated August 14, 2026, today's hearing was reset to **Monday, August 24, 2026 at 8:30 a.m. in Department 63.***

WERTZ, ET AL. VS. GUINASSO

CASE NUMBER: 22CV-0200321

Tentative Ruling on Defendant and Plaintiffs' Separate Motions for Attorney's Fees and Costs: Plaintiffs' move for an order awarding attorney's fees and costs for a total of \$255,507.56 against Defendant. Defendant opposes the motion. Additionally, Defendant moves for an order awarding attorney's fees and costs of \$239,561.99, less the judgment amount of \$24,174.63, for a total of \$215,387.36. Plaintiffs oppose the motion.

Request for Judicial Notice. Defendant requests the Court take judicial notice of the Complaint in this case, which includes Plaintiffs' First Cause of Action for breach of contract, and the attorney fee provision of the contract (paragraph 25). This request is granted pursuant to Evid. Code §§ 452(d) and 453.

Objections.